REPORT OF THE THEMATIC COMMITTEE ON CULTURE AND HERITAGE

ON

THE TRADITIONAL COURT SYSTEMS IN ZIMBABWE

SECOND SESSION - TENTH PARLIAMENT

Presented to Parliament March 2025

S.C ..../2025

THE COMMITTEE TERMS OF REFERENCE

Standing Order 20. Subject to these Standing Orders, a Thematic Committee must examine government policies which fall under or relate to the designated theme or themes and other matters falling under their jurisdiction as the Committee on Standing Rules and Orders may determine.

MADAM SPEAKER'S ANNOUNCEMENT

On Tuesday 02 October 2024, Madam President of Senate announced that the following Senators would serve on the Thematic Committee on Culture and Heritage;

Sen. Chief Nhema.
Sen. Chief Chireya
Sen. Chitsamba J.
Sen. Fanuel R.
Sen. Kunaka T.
Sen. Ngwenya M.
Sen. Wunganayi
Sen. Chief Nechombo
Sen. Chief Chikwaka.
Sen. Hungwe O.
Sen. Moyo S.
Sen. Nyathi E.
Sen. Ndlovu Molly
Sen. Zvidzayi

Sen. Chief Nechombo to be the Chairperson

1.0 Introduction.

1.0.1 Zimbabwe adopted a new Constitution in 2013, which, among other things, recognises the role of traditional leadership institutions in the delivery of justice, which operate alongside judicial authority. The Constitution gives the parameters for the traditional leaders with regards to the scope and extent of their duties. Traditional leaders play an important role in resolving disputes and conflicts in communal and resettlement areas. Traditional courts are more accessible to and cheaper for rural communities than modern courts. However, despite being accessible to the majority of our citizens, who dwell in the rural areas, traditional courts face significant challenges. Motivated by the Committee's mandate to oversee and ensure the effective administration of traditional courts and preservation of cultural heritage, the Committee resolved to conduct an inquiry into traditional courts so as to strengthen their operations and the governance system.

2.0 Objectives

2.1 The Committee was guided by the following objectives;

1. To evaluate the effectiveness of traditional courts in administering justice;
2. To identify challenges and opportunities within the Traditional Court System; and
3. To offer policy recommendations for improvements.

3.0 Methodology

3.1 In its inquiry, the Committee employed two strategies in gathering the necessary information. Initially, the Committee conducted oral evidence session on 6 May 2024, with Mr. Chinhengo, the Law Development Officer under the Ministry of Justice, Legal and Parliament Affairs who was representing the Permanent Secretary. The oral evidence session sought to appreciate the legal framework governing traditional courts in Zimbabwe and the procedures and process of traditional courts in administering justice.

3.2 In addition, the Committee conducted public hearings from the 2nd - 6th of September 2024 in 6 provinces. The Committee considered two urban areas, Harare and Bulawayo Metropolitan respectively, driven by the quest to be as much comprehensive as possible and extend the opportunities to

urban dwindlers to contribute. The rest where rural points, Murombedzi, Chiwundura, Insiza, Bikita and Mutasa.

4.0 Committee Findings

4.1 Legal Framework

4.1.1 The Constitution of Zimbabwe, Section 16(2), provides that the state and all institutions and agencies of government at every level must endeavour to preserve and protect Zimbabwe's heritage. The Customary Law and Local Courts Act (CLLCA) (Chapter 7:05) is the primary law, which recognise the hierarchical of traditional courts system with village and Community serving as the basic unit. In cases where any person is not satisfied with the decision of the primary court, the Act provides for appeal against the decision to the magistrate court in that province.

4.1.2. The Ministry of Justice, Legal and Parliamentary Affairs informed the Committee that the laws were clear regarding cases that fall within the jurisdiction of the traditional courts such as inheritance, marriage, divorce, child custody, land disputes, violations of community norms and customs. The grounds for limitations of local courts were specified in S16 of the CLLCA, cases involving higher monetary value USD15000 and above. Customary laws did not apply, in cases involving interpretation of wills or dissolution of marriage, guardianship of minors as well matters to do with maintenance and determination of rights in land disputes or immovable property.

4.1.3. During public hearings, participants submitted that they were not acquainted with cases that fall within the ambit of Chiefs. As such, the number of appeals to formal courts were increasing at an alarming rate. Participants also submitted that they were bringing cases to traditional courts relating to land disputes, divorces and cases involving monetary value above USD15,000 among others.

4.1.4 Participants, during public hearings acknowledged that cases were resolved quickly in traditional courts when compared to formal courts and also at minimal costs. As such, they preferred traditional courts.

4.2 Public Perceptions of traditional justice system.

4.2.1 The Ministry of Justice, Legal and Parliamentary Affairs submitted that Chiefs are appointed by the Minister in terms of S3(1) of the Traditional Leaders Act (Chapter 29:17). Their authority to preside over such Courts were outlined in S5(1) of the Traditional Leaders Act. It was noted that although, the law empowers the traditional courts, in practice it had some limitations. In circumstances where traditional practises, values and ethos were contrary to the formal laws, the formal laws would take precedents. Therefore, appeal cases from traditional courts are increasing in the Magistrate's Courts. In practise, these appeals were being interpreted as a sign of weaknesses for traditional courts.

4.2.2 During the public hearings, particularly in Bikita, Insiza, and Nyika, the public expressed deep concerns over the persistent erosion of Chiefs' authority in Traditional Court rulings. A key point of contention was the ability of perpetrators to appeal against decisions to formal courts, a practice that not only weakens the legitimacy of traditional justice but also diminishes public confidence in its rulings. This constant overruling of traditional court's ruling by higher courts had significantly undermined the credibility and effectiveness of the Traditional Court system, leading to a growing perception that its judgments lack finality and enforcement power. As a result, trust in Traditional Leadership was waning, threatening the very foundation of customary justice in these communities.

4.3 Perception on Gender Dimension on traditional justice system.

4.3.1 Women reported that traditional justice systems often fail to provide them with fair hearings or equitable treatment. They expressed concerns that these systems were unsupportive of women seeking justice after experiencing harm. Many complained that traditional leaders tend to favour men in family disputes, viewing them as closer kin—brothers, thereby compromising impartiality. Women also noted that their voices are often marginalized, with their cases receiving less attention than those brought forward by men.

4.3.2 Furthermore, they indicated that they were deterred from seeking justice through heavy fines imposed if their claims were unsuccessful, forcing many to abandon their pursuit

altogether. Single mothers, in particular, highlighted the additional challenges they face, as the system remains deeply entrenched in patriarchy and male privilege, making it even more difficult for them to navigate and access justice.

4.4 Harmonized Justice Processes

4.4.1 During oral evidence session, the Ministry of Justice, Legal and Parliamentary Affairs noted that the traditional/village court's decision may be appealed against in the community courts, all the way to the Magistrate Courts. A decision given by the magistrate on appeal may be further appealed against at the High Court. The process, therefore, becomes cumbersome and long, as one might have to wait for a long time before a judgement to be delivered. The chorological order of appeals does not take into consideration the nature of cases, for example where one's constitutional rights are violated.

4.4.2 During public hearings, the public submitted that because the law provided for chorological order of appeal however, cases whereby one's constitutional rights are violated, tend to take more time to be resolved. Zimbabwe requires a seamless integration between statutory courts and traditional justice systems to enhance fairness and legal coherence. In particular, cases handled by traditional courts that infringe upon rights protected under formal law should be promptly transferred to a constitutional or statutory court. The constitutional court would then adjudicate solely on the constitutional aspects of the case, providing a ruling that ensures alignment with national legal frameworks. Once resolved, the case would be remanded back to the customary court, accompanied by clear legal guidance on how its judgment must be revised to uphold constitutional principles. This structured approach would strengthen the legitimacy of traditional justice while safeguarding fundamental rights.

5.0 Committee Observations

5.0.1 The Committee deliberated on the findings and observed the following;

1. The appeal and review mechanisms from local courts to formal courts are cumbersome, and prolong the justice delivery as well as undermine the authority of traditional courts.

2. Women are not adequately represented in the traditional courts, and the patriarchy nature of traditional courts results in women issues being undermined.
3. Women and youths were underrepresented in the traditional courts structure, therefore issues affecting them tend to get less attention.
4. The Constitution provides for the establishment Ethics Committee under the Chiefs Council which is still to be constituted and can play an important role in ensuring that traditional courts are effective in their operations.

6.0 Committee Recommendations

6.1 After deliberations the Committee recommended the following;

1. The Ministry of Justice, Legal and Parliamentary Affairs should establish an Ethics Committee for Traditional Courts in line with the Constitution by June 2025.
2. The Ministry of Justice, Legal and Parliamentary Affairs should conduct capacity building programmes for Traditional Chiefs on the Traditional Court Systems and on record keeping and documentation by 30 June 2025.
3. The Ministry of Justice, Legal and Parliamentary Affairs should ensure harmonization of fines and penalties in Traditional Courts, aligned with the customs and cultural practices of each community by 30 April 2025.
4. The Chief Council in partnerships with The Ministry of Justice, Legal and Parliamentary Affairs should review the legal framework to include the inclusion of women and youth in Traditional Court Systems to achieve fair representation.
5. The Ministry of Justice, Legal and Parliamentary Affairs should establish guidelines clarifying the jurisdiction of traditional courts by 30 June 2025.

7.0 Conclusion.

7.0.1 In conclusion, the observations and recommendations from the public hearings underscore the vital role of Traditional Courts in Zimbabwe's justice system, while also highlighting the need for reforms to enhance their effectiveness, fairness, and alignment with national legal frameworks. Capacity-building for Traditional Chiefs, the establishment of an oversight body, and the creation of a hierarchical structure for appeals will ensure greater accountability and

consistency. Additionally, fostering inclusivity by incorporating women and youth in decision-making processes will strengthen the legitimacy of these courts. Standardizing fines, clarifying jurisdiction, and improving record-keeping will further promote transparency and equity. The Thematic Committee on Culture and Heritage is committed to these reforms, which will preserve the cultural significance of Traditional Courts while ensuring they evolve to meet contemporary legal standards and community needs.